

Sanaul Haque S/O Islamuddin vs State Of U.P. And Smt. Ibrat Jahan Wife Of ... on 27 September, 2007

Equivalent citations: 2008CRILJ1998

Author: Ravindra Singh

Bench: Ravindra Singh

JUDGMENT

Ravindra Singh, J.

1. This criminal revision has been filed by Sanaul Haque with a prayer to quash the order dated 5.5.2007 passed by the learned Additional C.J.M. Court No. 1 Bijnor whereby the learned C.J.M. has passed the judicial remand under Section 326 I.P.C. also in case Crime No. 425 of 2007 P.S. Nethor district Bijnor.

2. The facts of the case in brief are that in the present case the F.I.R. has been registered against the revisionist and three other co-accused persons on 25.4.2007 at 2.10 p.m. in case crime No. 425 of 2007 under Sections 452, 326, 323, 504, 506 I.P.C. P.S. Nathor district Bijnor. During investigation the I.O. of this case prayed for granting judicial remand for the offence punishable under Sections 325, 323, 504 and 506 I.P.C, but the same was opposed by the prosecution and the first informant of this case by submitting that in the present case, F.I.R. has been registered under Sections 326 I.P.C. also and on the basis of medical examination report, tooth of the left lower 6th tooth i.e. is molar of the injured Smt. Ibrat Jahan was missing, there. The injury was kept under observation and advised for x-ray. In the supplementary medical examination report, it was found that the first molar of left lower was missing from the socket and the injury was found grievous in nature but to extend an undue benefit to the accused, the I.O. has not sought remand for the offence punishable under Section 326 I.P.C. only because it was a non bailable offence whereas the remaining offence were punishable under Sections 325, 323, 504, 506 I.P.C. were bailable considering the same the learned Additional C.J.M. Court No. 1 Bijnor, who perused the record, came to the conclusion that a prima facie offence punishable under Sections 326, 325, 323, 504 and 506 I.P.C. is made out and the applicants was taken to judicial custody and send to district jail Bijnor on 5.5.2007, being aggrieved from the order dated 5.5.2007 the revisionist has preferred this revision.

3. Heard Sri V.M. Zaidi, learned Counsel for the revisionist and the learned A.G.A. for the State of U.P.

4. It is contended by the learned Counsel for the revisionist that according to the provision of Section 167 Cr.P.C. the Magistrate has been authorised for the detention of the accused person in the

custody, for the same the remand of the accused either to judicial custody or the police custody is passed by the learned Magistrate at the request of the Investigating Officer. It is settled law that at the stage of investigation the Magistrate has no right to interfere with the investigation of the case, but in the present case, the I.O. came to the conclusion that the only offence under Sections 325, 323, 504 and 506 I.P.C. is made out for the same offence the prayer for passing remand was made but the learned Magistrate concerned passed the judicial remand under Section 326 I.P.C. also, it amounts the interference in the investigation of a criminal case by the Magistrate concerned which is illegal, because the learned Magistrate has exceeded its jurisdiction in passing the impugned order in support of this contention the learned Counsel for the revisionist cited a case of Chhatrapal Singh and Ors. v. State of U.P. (2) A.A.R. 564(H.C.) of this Hon'ble Court, in which Hon'ble Single Judge held that "Judicial Magistrate has exceeded his jurisdiction by recording the observation of the investigation stage, it amounts interference with the investigation.

5. It is further contended that even on the basis of the allegations made against the revisionist and the medical examination report, no offence under Section 326 I.P.C. is made out against the revisionist, the learned Magistrate has exceeded his jurisdiction in remanding the revisionist for the offence punishable under Section 326 I.P.C. at the initial stage, while admittedly the investigation was in progress. The learned Magistrate can exercise its jurisdiction after completion of the investigation for the purpose of taking cognizance or at the stage of framing of the charges. The impugned order dated 5.5.2007 is illegal and is liable to be set aside.

6. In reply to the above mentioned contention it is submitted by the learned A.G.A. that the I.O. is under obligation to place all the relevant police papers before the learned Magistrate concerned, for obtaining a judicial remand of the accused person which has to be passed after perusal of the police papers and applying the judicial mind. The learned Magistrate concerned is not bound to pass judicial remand as sought by the I.O. if the learned Magistrate concerned is not satisfied to pass the judicial remand, the same may be rejected or to pass judicial remand for the offence which is constituted on the basis of police papers. The learned Magistrate concerned has not exceeded in passing the judicial remand for the offence under Section 326 I.P.C. though it was not sought by the I.O. The learned Magistrate concerned has passed the impugned order after perusing the police papers. The present revision is devoid of merits, it may be dismissed.

7. Considering the facts and circumstances of the case and submissions made by the learned Counsel for the revisionist and the learned A.G.A. and from the perusal of the record, it appears that in the present case, the controversy involved is whether the learned Magistrate is having any option to refuse the remand as sought by the I.O. or to pass the judicial remand for the offence not sought by the I.O. or to alter or add the offence sought by the I.O.

8. To deal with the above mentioned controversy, a perusal of the provisions of Section 167 of Code of Criminal Procedure. 1973 is essentially required. Section 167 Cr.P.C. read as under:

167. Procedure when investigation cannot be completed in twenty four hours.

(1) whenever any persons is arrested and detained in custody, and it appears that the investigation cannot be completed within the period of twenty four hours fixed by Section 57, and there are grounds for believing that the acquisition or information is well founded, the officer in charge of the police station or the police officer making investigation, if he is not below the rank of sub-inspector, shall forthwith transmit to the nearest Judicial Magistrate a copy of the entries in the diary hereinafter prescribed relating to the case, and shall at the same time forward the accused to such Magistrate.

(2) The Magistrate to whom an accused person is forwarded under this section may, whether he has or has not jurisdiction to try the case, from time to time, authorise the detention of the accused in such custody as such Magistrate thinks fit, for a term not exceeding fifteen days in the whole; and if he has no jurisdiction to try the case or commit it for trial, and considers further detention unnecessary, he may order the accused to be forwarded to a Magistrate having such jurisdiction:

Provided that-

(a) the Magistrate may authorise the detention of the accused person otherwise than in the custody of the police, beyond the period fifteen days, if he is satisfied that adequate grounds exist for doing so but no Magistrate shall authorise the detention of the accused person in custody under this paragraph for a total period exceeding,--

(i) ninety days, where the investigation relates to an offence punishable with death, imprisonment for life or imprisonment for a term of not less than ten years;

(ii) sixty days, where the investigation relates to any other offence, and, on the expiry of the said period of ninety days, or sixty days, as the case may be, the accused person shall be released on bail if he is prepared to and does furnish bail, and every person released on bail under this Sub-section shall be deemed to be so released under the provisions of Chapter XXIII for the purposes of that Chapter;

(b) no Magistrate shall authorise detention in any custody under this section unless the accused is produced before him;

(c) no Magistrate of the second class, not specially empowered in this behalf by the High Court, shall authorise detention in the custody of the police.

Explanation 1. For the avoidance of doubts, it is hereby declared that, notwithstanding the expiry of the period specified in Paragraph (a), the accused shall be detained in custody so long as he does not furnish bail.

Explanation II If any question arises whether an accused person was produced before the Magistrate as required under paragraph (b), the production of the accused person may be proved by his

signature on the order authorising detention.

2-A Notwithstanding anything contained in Sub-section (1) or Sub-section (2), the officer in charge of the police station or the police officer making the investigation, if he is not below the rank of a Sub-inspector, may, where a Judicial Magistrate is not available, transmit to the nearest Executive Magistrate, on whom the powers of a Judicial Magistrate or Metropolitan Magistrate have been conferred, a copy of the entry in the diary, hereinafter prescribed relating to the case, and shall, at the same time, forward the accused to such Executive Magistrate and thereupon such Executive Magistrate, may for reasons to be recorded in writing, authorise the detention of the accused person in such custody as he may think fit for a term not exceeding seven days in the aggregate; and, on the expiry of the period of detention so authorised, the accused person shall be released on bail except where an order for further detention of the accused person shall be released on bail except where an order for further detention of the accused has been made by a Magistrate competent to make such order; and where an order for such further detention is made, the period during which the accused person was detained in custody under the orders made by an Executive Magistrate under this Sub-section, shall be taken into account in computing the period specified in Paragraph (a) of the proviso to Sub-section (2):

Provided that before the expiry of the period aforesaid, the Executive Magistrate shall transmit to the nearest judicial Magistrate the record of the case together with a copy of the entries in the diary relating to the case which was transmitted to him by the officer in charge of the police station or the police officer making investigation, as the case may be.

(3) A Magistrate authorising under this section detention in the custody of the police shall record his reasons for so doing.

(4) Any Magistrate other than the Chief Judicial Magistrate making such order shall forward a copy of his order, with his reasons for making it, to the Chief Judicial Magistrate.

(5) If in any case triable by a Magistrate as a summons-case, the investigation is not conducted within a period of six months from the date on which the accused was arrested, the Magistrate shall make an order stopping further investigation into the offence unless the officer making the investigation satisfies the Magistrate that for special reasons and in the interest of justice the continuation of the investigation beyond the period of six months is necessary.

(6) Where any order stopping further investigation into an offence has been made under Sub-section (5), the Sessions Judge may, if he is satisfied, on an application made to him or otherwise, that further investigation into the offence ought to be made, vacate the order made under Sub-section (5) and direct further investigation to be made into the offence subject to such directions with regard to bail and other matters as he may specify.

According to Section 167 Cr.P.C. whenever any person is arrested and is detained in custody, it appears to the I.O. that the investigation cannot be completed within 24 hours fixed by Section 57 of Cr.P.C. and there are grounds for believing that the acquisition or information is well founded, the officer in charge of the police station concerned, or the police officer making investigation, shall forthwith transmit to the nearest Magistrate a copy of the entries in the diary and shall at the same time forward the accused to such Magistrate and the Magistrate concerned authorised the detention of the accused in such custody as such the Magistrate think fit, for a term not exceeding 15 days, it shows that the judicial remand shall be passed on the subjective satisfaction of the Magistrate on the basis of the relevant police papers, in such circumstances, the perusal of the relevant police papers is essentially required for the application of the judicial mind of the Magistrate concerned, in such process the learned Magistrate concerned is not under obligation to accept the report of the I.O. without applying the judicial mind for passing the a judicial remand, it may be accepted or it may be rejected or it may be altered by adding some more offence or deleting some offence, in the present case also, same issue is evolved. The learned Magistrate concerned perused the relevant police papers and came to the conclusion that the offence under Section 326 I.P.C. was also made out and passed the judicial remand under Section 326 I.P.C, also where as the I.O. had sought the remand only under Section 325, 323, 506, 452 I.P.C, the learned Magistrate has not exceeded its jurisdiction. The learned Magistrate; concerned is always empowered refuse the remand sought by I.O. to add some more offence or delete some offence, in the remand order the order authorising the detention of the accused in the custody is a judicial order it has to be passed after applying judicial mind in any way, it does not amounts to interference with the investigation of the case. So far as the constitution of the offence under Section 326 I.P.C, is concerned the main consideration is medical examination report, the learned Magistrate concerned was satisfied on the basis of the medical examination reports and that a prima facie offence under Section 326 I.P.C. is made out.

9. The contention of the learned Counsel or the revisionist that passing the remanded under Section 326 I.P.C. which was not sought by the I.O. amounts to interference with the investigation is having no force and from the perusal of the case cited i.e. Chatrapal Singh and Ors. v. State of U.P. 2006(2) A.A.R. 56A (HC) it appears that the provisions of Section 167 Cr.P.C. have not been consideration, with great humblenesses I do not agree with the view taken in above mentioned case. There is no illegality in there impugned order dated 5.5.2007.

10. In view of above discussion, the impugned order dated 5.5.2007 is not suffering from any illegality or irregularity. Thereafter, the prayer for quashing the same is refused.

Accordingly this revision is dismissed.